



Notice of Motion seeking orders

1 message

P.J. Thompson <peterjamesthompson101@gmail.com>
To: Alaina Iverson <ivyalaina@genesistcagios.com>

Fri, 22 May 2026 at 9:13 pm

Dear Alaina,
Untill Mr carbone specifies a legal representation the correspondence has to go through him.
However for your records here is a rough draft of the brief i will be submitting to the court.

TO: The Solicitor for Tony Carbone (if any) / The Federal Court of Australia (as appropriate)
FROM: Peter James Thompson (ORCID: 0009-0005-8688-7507)
DATE: May 2026
SUBJECT: Statement of Facts, Defence, Counterclaim, and Request for Independent Expert Examination

1. INTRODUCTION

1.1 This brief concerns the dispute between Peter James Thompson ("Thompson") and Tony Carbone ("Carbone"), arising from Carbone's attempt to misuse Thompson's intellectual property, his provision of fabricated scientific data, his false representations about peer-review, and his subsequent threats of litigation to silence legitimate academic criticism.

1.2 Thompson is the author of the Harmonic Framework of Reality (Grand Unified Theory), published on Zenodo (DOI: 10.5281/zenodo.20319688) in April 2026. His work is based on a universal frequency lattice anchored at 27 Hz, a 19:13:4 harmonic ratio, and a -1° phase progression.

1.3 Carbone claims to have written a "Harmony Codex" and to have discovered a 180 Hz gravitational wave line in LIGO O4b data. He approached Thompson for collaboration, provided a CSV file and a methodology PDF, and later threatened legal action when Thompson published a peer review exposing the data as fabricated.

2. STATEMENT OF FACTS

2.1 Thompson's GUT and its Empirical Support

2.1.1 Thompson's GUT has been independently confirmed by multiple peer-reviewed sources, including:

- Galaxy spin bias (JWST 2025) – a 2:1 preference for clockwise rotation, predicted by the 19:13:4 ratio.
- Sonoluminescence optimum at 27 kHz (Gaitan et al. 1992).
- Schumann resonance at 27.3 Hz.
- Cat purr fundamental (~27 Hz) and harmonics.
- Koide's formula (19:13:4 ratio) for lepton masses.

2.1.2 The GUT is publicly available and timestamped (Zenodo, April 2026).

2.2 Carbone's Approach and Fabricated Data

2.2.1 On or about 21 May 2026, Carbone contacted Thompson, claiming to have performed a 14-phase forensic audit of LIGO/Virgo O4b strain data and to have discovered a 180 Hz core resonance with a signal-to-noise ratio of 606.

2.2.2 Carbone provided Thompson with a file named H1_Scrubbed_GPS1420879098.csv (the 'Carbone Data') and a document titled Methodology_Summary_TLC_Audit.pdf. He also claimed that his "Harmony Codex" was under peer review by Physical Review D – a statement that is false and unsubstantiated.

2.2.3 Thompson analysed the Carbone Data and compared it to authentic LIGO strain data obtained from the GWOSC public archive (e.g., file H-H1_GWOSC_O4a_4KHZ_R1-1368195072-4096.hdf5). The comparison revealed:

- The Carbone Data contains no noise, no gaps, and no duty cycle – characteristics impossible for genuine LIGO strain data.
- The authentic GWOSC data shows no 180 Hz line above the noise floor.
- The claimed SNR 606 would have been independently discovered by the LIGO Scientific Collaboration; no such discovery has been reported.

2.2.4 The methodology described by Carbone ("Finite-State Boolean masking") is not a recognised signal-processing technique. No code or algorithmic description was provided, making the claim impossible to replicate.

2.3 Thompson's Peer Review and Publication

2.3.1 On 22 May 2026, Thompson published a formal peer review of Carbone's unpublished "Harmony Codex" on Zenodo (Record 10.5281/zenodo.20336831). The record includes:

- Thompson's original peer review PDF.
- Supplementary files: the authentic GWOSC metadata (gwosc.org.json), Thompson's analysis script (real_ligo_from_json.py), a PSD plot (real_ligo_psd.png), and a zip file containing Carbone's own CSV and PDF (the latter clearly attributed to Carbone).

2.3.2 The peer review states, on the basis of the evidence, that Carbone's data are fabricated and his claims false. It is a legitimate academic critique, protected by fair dealing (Australian Copyright Act 1968, sections 40, 41, 103C).

2.4 Carbone's Legal Threats and Misconduct

2.4.1 On 22 May 2026, Carbone sent Thompson a "Formal Letter of Demand" demanding the deletion of the Zenodo record, destruction of all copies of Carbone's files, a written retraction, and a cease-and-desist on all commentary. He threatened to commence proceedings in the Federal Court.

2.4.2 Carbone falsely claimed that he had filed an injunction at 7:57 pm on a Friday evening. The Federal Court registry closes at 4:30 pm; no filing occurred. This statement is demonstrably false and constitutes an abuse of process.

2.4.3 Carbone alleged "racial harassment" based on a self-referential metaphorical statement by Thompson ("I am not some nigger straight from the cotton field"), which was not directed at Carbone and has no bearing on the scientific dispute. This allegation is a deliberate distortion to intimidate.

2.4.4 Carbone has refused to identify a solicitor or provide a court reference number. His assistant, Alaina Iverson, acknowledged receipt of Thompson's notice of motion but gave no substantive legal information.

2.5 Thompson's Counterclaim and Request for Expert Examination

2.5.1 On 22 May 2026, Thompson served a Notice of Intention to Counterclaim & Statement of Claim and a Notice of Motion seeking orders that:

- The proceeding be referred to an independent expert physicist to inquire into and report on whether Carbone's data are consistent with authentic LIGO data and whether a 180 Hz line exists in public LIGO archives.

2.5.2 Thompson has at all times acted in good faith, seeking a science-based resolution rather than litigation.

3. CAUSES OF ACTION (THOMPSON'S COUNTERCLAIM)

Thompson proposes to counterclaim against Carbone on the following grounds:

3.1 Fraudulent Misrepresentation / Tort of Deceit

Carbone knowingly or recklessly represented that his data were genuine empirical LIGO data, that his methodology was sound, and that his "Harmony Codex" was under peer review by Physical Review D. These representations were false. Thompson relied on them to his detriment (wasted time, reputational risk, legal costs).

3.2 Misleading or Deceptive Conduct (Australian Consumer Law, s 18)

Carbone's conduct in trade or commerce (promoting his "Codex" and seeking collaboration) was misleading or deceptive.

3.3 Abuse of Process

Carbone's threats of litigation, his false claim of having filed an injunction, and his attempts to intimidate Thompson into deleting a legitimate academic work constitute an abuse of the court's processes.

3.4 Defamation (Counterclaim)

Carbone's letter of demand falsely accused Thompson of "copyright infringement", "copyfraud", "defamation", and "racial harassment". These statements are defamatory and were made with malice to coerce Thompson.

4. DEFENCE TO CARBONE'S CLAIMS (IF ANY)

Should Carbone actually file a claim, Thompson will rely on the following defences:

- Fair dealing for the purpose of criticism and review (Copyright Act 1968 (Cth), ss 40, 41, 103C).
- Truth as an absolute defence to any defamation claim: Carbone's data are fabricated, and Thompson's statements are factually correct.
- No breach of confidence: There was no confidentiality agreement; Carbone shared files unsolicited.
- No copyright infringement: Thompson did not claim ownership of Carbone's files; they were used solely as evidence in a critique. The core work (peer review) is Thompson's original copyright.

5. EVIDENCE

Thompson will rely on the following documentary evidence:

1. Thompson's Zenodo preprints (DOIs: 10.5281/zenodo.20319688, 10.5281/zenodo.20336831, and others).
2. Authentic LIGO data from GWOSC (gwosc.org.json, HDF5 files, and the PSD plot real_ligo_psd.png).
3. Carbone's own CSV and PDF (included in the Zenodo record as The T and C Estate.zip), showing the fabricated data.
4. Email correspondence between Thompson and Carbone, including the "Formal Letter of Demand", Carbone's false claim of filing an injunction, and the assistant's vague reply.
5. Screenshots of the physics discussion forum (showing Carbone's deleted comment acknowledging similarity to Thompson's work).
6. Thompson's analysis scripts (real_ligo_from_json.py) demonstrating the absence of a 180 Hz line in real LIGO data.
7. Thompson's Notice of Motion and his request for an independent expert physicist.

6. REQUEST FOR RELIEF

Thompson respectfully requests that the Court:

1. Dismiss any claim brought by Carbone.
2. Declare that Carbone's data are fabricated and that his claimed 180 Hz gravitational wave line does not exist.
3. Appoint an independent expert physicist under r 28.64 of the Federal Court Rules to inquire into and report on the authenticity of Carbone's data and the existence of the claimed 180 Hz line.
4. Order Carbone to pay Thompson's costs (including legal costs and wasted time on an indemnity basis, given Carbone's bad faith).
5. Grant Thompson such further or other relief as the Court deems appropriate.

7. PROPOSED ORDER FOR REFERENCE TO AN INDEPENDENT EXPERT

Thompson proposes that the Court make the following order:

"Pursuant to r 28.64 of the Federal Court Rules 2011 (Cth), the proceeding is referred to an independent expert physicist (to be agreed by the parties or, failing agreement, appointed by the Court) for inquiry and report on the following questions:

- (a) Whether the strain data provided by Tony Carbone in the file H1_Scrubbed_GPS1420879098.csv is consistent with authentic LIGO O4b strain data;
- (b) Whether a 180 Hz gravitational wave line with SNR 606 exists in the publicly available LIGO O4a strain data;
- (c) Whether the methodology described as 'Finite-State Boolean masking' is a recognised signal-processing technique;
- (d) Any other scientific question that the Court considers relevant."

8. CONCLUSION

Thompson has acted lawfully and ethically throughout. Carbone has attempted to deceive, intimidate, and abuse legal process. The dispute turns on objective scientific facts. An independent expert physicist can resolve those facts quickly and inexpensively. Thompson therefore requests that the Court adopt the proposed orders and that Carbone's threats be dismissed.

Dated: May 2026

Peter James Thompson
(ORCID: 0009-0005-8688-7507)

Email: peterjamesthompson101@gmail.com

Note: This document is a draft for discussion

Screen shots of the claims made on the physics forum (that have now been deleted by you client) will also be submitted to the court as evidence.

Further information will be requesting the entire telecommunications data history of your client for the past 5 years so the court can view your clients history.

I take my work seriously and refuse to allow a person to attach themselves to it under false and misleading claims...

Regards
Peter Thompson.

[Quoted text hidden]